Judge Orders Release of Canadian Dentist Held in Minnesota

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A Canadian dentist held by immigration officers in Minnesota is back home. A judge ordered him to be released right away.

Dr. William Lizardo, 32, was **arrested** on October 23 and held at Sherburne County **Jail**. He was ordered to leave the United States. On Sunday evening, he was finally released, his lawyer Hassan Ahmad said.

Judge Michael J. Davis wrote that the arrest broke Lizardo's **constitutional** rights. He noted Lizardo filed changes of address each time the couple moved.

In January, his request for permanent residency was denied because he had not provided a certified document from Ontario. Orders to appear at later hearings were sent to the wrong address, so Lizardo missed them and was **arrested**.

Lizardo asked to cancel the removal order because he had never received the hearing notices. A court granted that request on October 28. The judge said there was no reason to believe he was a **flight risk** and ordered his release. Lizardo now awaits a green card decision.

Word Treasure

arrested -- Taken and held by officials because they think someone broke a rule or law.

constitutional -- To do with a country's basic rules about rights and government.

flight risk -- A person officials think might run away instead of going to a hearing.

jail -- A place where people are kept while officials decide their case.

Background you need

A green card lets a person from another country live and work in the United States for a long time.

To get one, people must send in papers and go to hearings, and officials must send hearing notices to the right address.

If notices go to the wrong address, a person can miss a hearing without knowing, and a judge can step in if detention is unfair.

Break it down

WHO: Dr. William Lizardo, a Canadian dentist, Judge Michael J. Davis, and lawyer Hassan Ahmad.

WHAT: Lizardo was arrested and held, then a judge ordered him released right away.

WHERE: Minnesota, at Sherburne County Jail.

WHY: The judge said the arrest broke Lizardo's rights and there was no reason to think he was a flight risk.

Why it matters

Getting an address right matters, because a letter sent to the wrong place can change a family's life.

Test what you remember

1. Who was held by immigration officers in Minnesota?

- (A) Judge Michael J. Davis
- (B) A dentist from Ontario
- (C) Hassan Ahmad
- (D) Dr. William Lizardo

2. What did the judge say about Lizardo's arrest?

- (A) It was never checked
- (B) It was too short
- (C) It broke his constitutional rights
- (D) It followed the rules

3. Why did Lizardo miss later hearings?

- (A) He was on holiday
- (B) He forgot the date
- (C) Orders were sent to the wrong address
- (D) He refused to go

4. When was Lizardo arrested?

- (A) On October 23
- (B) On October 28
- (C) On Sunday evening
- (D) In January

5. What did a court do on October 28?

- (A) It approved his green card
- (B) It closed his case
- (C) It arrested Lizardo
- (D) It granted his request to cancel the removal order

6. What is Lizardo waiting for now?

- (A) A green card decision
- (B) A new job
- (C) A court date in Canada
- (D) A flight home

Answer key (try the quiz first!): 1: D 2: C 3: C 4: A 5: D 6: A

Questions to think about

1. Judge Michael J. Davis: Said the arrest broke Lizardo's rights and called the facts appalling.

2. Immigration officers: Argued Lizardo should stay in custody while his case was decided.

MY THOUGHTS (at least 20 words):